

Court No. - 6

Case :- WRIT - C No. - 29397 of 2023

Petitioner :- Executive Engineer, 3rd Division, Jaunpur,
Purvanchal Vidyut Vitaran Nigam Limited

Respondent :- Mahendra Seth

Counsel for Petitioner :- Udit Chandra

Counsel for Respondent :- Ajay Kumar Maurya

Hon'ble Mrs. Manju Rani Chauhan,J.

List revised. No one has appeared on behalf of petitioners as well as the respondents to press this petition.

In the interest of justice, put up this case on 4th October, 2023 as fresh.

Order Date :- 11.9.2023

Arti

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Counsel for Petitioner :- Udit Chandra

Counsel for Respondent :- Ajay Kumar Maurya

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri Udit Chandra, learned counsel for the petitioner and Sri Ajay Kumar Maurya, learned counsel for the respondent.

This writ petition has been filed with a prayer to quash the order dated 15.12.2022 alongwith order dated 02.01.2023 in Case No. 33/2022 in the name of Mahendra Seth Vs. Executive Engineer passed by Permanent Lok Adalat, Jaunpur.

The aforesaid impugned order has been challenged on two grounds, firstly that the notice as required u/s 22C of the Legal Service Authority Act, 1987 is to be issued to the parties on everyday whereas in the present case the notices have been issued only on two dates i.e. 19.07.2022 and 26.09.2022. The counsel for the petitioner laid emphasis on Annexure 3 of the petition wherein the order sheet has been placed to prove the aforesaid. Secondly, there is remedy of moving an application under clause 6.5 of the Electricity Supply Code, 2005 for redressal of the grievance.

On the aforesaid the counsel for the respondent submits that he is ready and willing to move an application under clause 6.5 of the Electricity Supply Code, 2005 within two weeks from today, a direction may be issued to decide the same.

No useful purpose would be served by keeping this petition pending in view of the order, which the Court proposes to pass hereunder.

Considering the facts and circumstances of the case, without expressing any opinion on the merits of the case, this writ petition is finally disposed of with a direction to the respondent to make a fresh application before Executive Engineer concerned within three weeks from today along with a certified copy of this order

and, if any such representation/application is made, the same may be decide after hearing to him within a period of two months thereafter, if there is no other legal impediment.

Till final order passed on the application after hearing the respondent, no coercive action shall be taken against him.

Order Date :- 18.10.2023

Arti